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Case Number: 22STCV06081 Hearing Date: August 10, 2026 Dept: 224

Pitt et al., v. Jolie et al.,

TENTATIVE RULING

The demurrer is SUSTAINED with leave to amend. The motion to strike is DENIED as MOOT.

Cross-Complainant shall file an amended pleading within 15 days.

ANALYSIS

Introduction

On February 17, 2022, Plaintiffs William B. Pitt and Mondo Bongo, LLC filed a Complaint in this action.

On June 3, 2022, Plaintiffs filed their First Amended Complaint, naming Tenute del Mondo B.V. as a defendant.

On May 13, 2024, Defendant and Cross-Complainant Tenute del Mondo B.V. filed a Cross-Complaint against Cross-Defendants Pitt and Mondo Bongo, LLC, alleging a single cause of action for violation of Penal Code section 496(c).

On September 29, 2025, the Court issued its Ruling on the Demurrer and Motion to Strike the Cross-Complaint.

On October 22, 2025, Cross-Complainant filed the operative First Amended Cross-Complaint.

On December 22, 2025, Cross-Defendants filed the instant Demurrer and Motion to Strike to the First Amended Cross-Complaint.

On July 15, 2026, Cross-Complainant filed its Oppositions to the Demurrer and the Motion to Strike.

Request for Judicial Notice

Cross-Defendants request the Court to take notice of the following: (1) a Motion to Quash Service of Summons filed by Tenute del Mondo B.V. in this action; (2) a Reply Brief in Support of Pitt and Mondo Bongo's Demurrer to the Cross-Complaint of Tenute, filed in this action; and (3) a letter dated September 20, 2023 from the Office of the Public Prosecutor at Draguignan Judicial Court to Roland Venturini, with a certified English translation.

In opposition, Cross-Complainant requests the Court take judicial notice of the following: (1) the Ruling on Cross-Defendants William B. Pitt and Mondo Bongo LLC's Demurrer to Tenute Del Mondo, B.V.'s Cross-Complaint, entered by this Court on September 29, 2025 in this action.

The requests are granted.

Meet and Confer

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (CCP §§ 430.41)

The Declaration of Julia B. Cherlow, executed on December 22, 2025, sets forth the meet and confer efforts of counsel for the Cross-Defendants, and counsel's attempts to resolve the discovery dispute informally by telephone. The declaration satisfies the requirement of Code of Civil Procedure section 430.41

Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirza (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-21.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not on the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Id.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

First Cause of Action: Violation of Penal Code § 496

Plaintiffs and Cross-Defendants Pitt and Mondo Bongo demur to the first cause of action on the ground that Penal Code section 496 does not apply to the extraterritorial conduct alleged.

In sustaining the prior demurrer on this ground, the Court's September 29, 2025 order recited Penal Code section 27, which reaches persons who commit a crime "in whole or in part" within this state, together with the rule that jurisdiction lies where preparatory acts occur here, and it identified the defect as Tenute's failure to allege non-conclusorily that any concealment occurred in California. (See Sept. 29, 2025 Order.) Tenute now contends that the Court thereby adopted sections 27 and 778a as the governing standard and that the First Amended Cross-Complaint satisfies it. Cross-Defendants renew their argument that sections 27 and 778a are territorial jurisdiction provisions for criminal prosecutions and have no application to a private civil action under section 496(c).

A court retains inherent authority to reconsider and correct its own prior interim rulings, and may do so on its own motion. (Le Francois v. Goel (2005) 35 Cal.4th 1094, 1096-1097, 1107-1108.) The Court reconsiders the question on its own motion, having reexamined it on fuller briefing, and departs from the analytical framework recited in the prior order. The disposition is unchanged. The demurrer was sustained on this ground before, and is sustained again now, but on the standard set out below.

Sections 27 and 778a confer criminal jurisdiction. They establish when the State may prosecute and punish an offender, and by their terms operate in a criminal action, which is "[t]he proceeding by which a party charged with a public offense is accused and brought to trial and punishment." (Pen. Code, § 683; see Code Civ. Proc., § 31; People v. Betts (2005) 34 Cal.4th 1039, 1047; People v. Renteria (2008) 165 Cal.App.4th 1108, 1116-1118.) The instant action is not a criminal prosecution. It is a civil action by a private party seeking treble damages, costs and attorney's fees under section 496(c). Tenute supplies no authority, other than this Court's prior order, applying section 27 or section 778a outside a criminal prosecution, and none extending either provision to a civil claim under section 496(c).

Under sections 27 and 778a, Tenute would have been required to allege only that some part of the offense, or a preparatory act toward it, occurred in California – that Cross-Defendants, with the requisite intent, committed an act in California that was more than a de minimis act toward the eventual completion of an offense consummated abroad. (Betts, supra, 34 Cal.4th at p. 1047.) Those provisions being inapplicable, the governing standard here is the one that applies to any statute silent as to its extraterritorial reach. The presumption against extraterritoriality operates in full force, and Tenute must allege that "[w]hat is unlawful, and what creates liability under" section 496(c) occurred in California. (Sullivan v. Oracle Corp. (2011) 51 Cal.4th 1191, 1207-1208.)

Tenute does not allege that the property was taken from any account, entity, or place in California. It alleges instead that concealing and withholding are independent bases of liability and that those acts were directed from California.

Tenute is correct that concealing and withholding are independent bases of liability under section 496(a). The Legislature included both receiving and concealing so that the continuing, purposeful concealment of stolen property could be reached even where prosecution for the receipt of that property is barred. (Williams v. Superior Court (1978) 81 Cal.App.3d 330, 343-344.) Concealment consists of the act of intentionally secreting stolen property in violation of the affirmative duty to return it, and that act is purposeful and distinct from the initial theft. (Ibid.; see People v. Grant (2003) 113 Cal.App.4th 579, 596.) That the property was "so stolen or obtained" is a circumstance of the offense; the conduct the statute punishes is the concealing or the withholding. Tenute therefore need not place the theft in California. It needs to place a concealment or a withholding here.

It has not done so.

First, Tenute alleges where a decision was made, not where property was concealed or withheld. It alleges that Cross-Defendants "directed this conduct from California," "made the decision, while in California, to not return any of the property they have improperly obtained," and "from California – have made the decision to not refund these amounts." (FACC ¶¶ 46, 48, 76.) Sullivan declined to treat in-state decision-making as the conduct creating liability where the unlawful act itself occurred elsewhere, and refused to speculate about the location of that act where the pleading did not speak to it. (Sullivan, supra, 51 Cal.4th at pp. 1195, 1207-1208.)

Second, the mechanism Tenute describes operates abroad. The concealment was accomplished by imposing a shareholder deadlock at Quimicum, a Luxembourg company that cannot act without directors under Luxembourg law. (FACC ¶¶ 28, 70.) The property withheld is distributions Chateau Miraval, a French company, did not declare, and loans it did not repay. (FACC ¶¶ 9, 58, 77.) Withholding is located where the property is held and where the duty to deliver it runs. On Tenute's own allegations, both are in France.

Third, the allegation that Mondo Bongo is a California entity does not supply the missing situs. (FACC ¶ 8.) The FACC does not allege that Mondo Bongo received, held, or possessed any of the property in California. A California domicile is not an allegation that the withholding occurred here, any more than Pitt's California residence is. (See Sullivan, supra, 51 Cal.4th at

pp. 1207-1208.)

Fourth, Tenute alleges that on June 13, 2021, Venturini wrote to Grant, attaching the Miraval Studios construction budget, that "[o]f course none of these info have gotten to AJ for now," and that on June 28, 2021, Pitt wrote separately to Venturini about that budget, "I believe we should no longer send AJ reports as she is trying to shop her shares." (FACC ¶ 71.) Tenute alleges on information and belief that Pitt was in California when he sent that message. (Ibid.) Even accepting that allegation, the message concerns the suppression of information. Section 496(a) reaches the concealment of property from the owner. The property at issue is the funds of Chateau Miraval. (FACC ¶¶ 69, 78.) Those funds had already been spent in France. (FACC ¶¶ 9, 39-41, 72-76.) There was no property in California to secrete.

The burden of demonstrating a reasonable possibility that a defect can be cured by amendment rests on the pleading party. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) Tenute requests leave to plead additional facts developed in discovery "concerning the California locus of Cross-Defendants' concealment and control."

Accordingly, the demurrer is SUSTAINED with leave to amend.

Motion to Strike

Demurring Cross-Defendants move to strike portions of the First Amended Cross-Complaint offered in support of the First Cause of Action on the grounds that the allegations are time-barred on their face and were previously stricken by this Court.

Because the demurrer to the sole cause of action is sustained with leave to amend, the First Amended Cross-Complaint will be superseded and the motion to strike is MOOT.

Conclusion

The demurrer is SUSTAINED with leave to amend. The motion to strike is DENIED as MOOT.

Cross-Complainant shall file an amended pleading within 15 days.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.